



CHAPTER xxxv.

An Act to confer further powers on the Abertillery and District Water Board. A.D. 1926.
[8th July 1926.] —

WHEREAS by the Abertillery and District Water Board Act 1910 (in this Act called "the Act of 1910") the Abertillery and District Water Board (in this Act called "the Board") were constituted and incorporated and were authorised to construct certain waterworks in the counties of Brecknock and Monmouth including an impounding reservoir called "the Grwyne reservoir" in the county of Brecknock and to supply water throughout the urban districts of Abertillery Abercarn and Risca and the Sirhowy portion (as defined in the Act of 1910) of the urban district of Mynyddislwyn :

And whereas by the Abertillery and District Water Board Act 1914 (in this Act called "the Act of 1914") the Board were authorised to construct an additional reservoir called "the Helyg reservoir" below the Grwyne reservoir and by the Abertillery and District Water Board Act 1920 (in this Act called "the Act of 1920") the period for the completion of the works authorised by the Act of 1910 was extended and the Board were authorised to continue taking water from the river Grwyne Fawr in accordance with the provisions of subsection (1) of section 25 of the Act of 1910 during the construction and until the time limited by that Act for the completion of the Grwyne reservoir :

And whereas the construction of the Grwyne reservoir which was commenced prior to the war was

A.D. 1926. — suspended owing to circumstances arising out of the war between the years 1915 and 1919 and the construction of the reservoir will not be completed until 1927:

And whereas the period for the repayment of moneys borrowed under the Acts of 1910 and 1914 was fixed before the war and owing to circumstances arising out of the war the works have taken a much longer time to construct and the cost of the construction has greatly increased and throughout the whole period the Board have been paying interest on the moneys borrowed for the construction of the works:

And whereas the population and assessable value of the area of the Board have greatly increased since the works were commenced and such population and assessable value are still increasing and it is expedient to extend the period for the repayment of moneys borrowed by the Board under the Acts of 1910 and 1914:

And whereas it is expedient that further powers should be conferred upon the Board as provided by this Act:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short and
collective
titles.

1.—(1) This Act may be cited as the *Abertillery and District Water Board Act 1926*.

(2) The Acts set forth in the preamble to this Act and this Act may be cited together as the *Abertillery and District Water Board Acts 1910 to 1926*.

Rates for
water-
closets.

2. In addition to the charges for the supply of water for domestic purposes authorised by section 55 (Rates for supply of water for domestic purposes) of the Act of 1910 the Board may charge in respect of every watercloset beyond the first (for which no additional charge shall be made) on any premises within the limits

of supply of the Board a sum not exceeding five shillings per annum. A.D. 1926.

3. When water of the Board supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Board may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding thirty shillings per annum (and where more motor cars than one are ordinarily kept a further sum not exceeding ten shillings per annum for each motor car beyond the first as the Board may prescribe) and any sum charged under the provisions of this section shall be paid quarterly in advance and be recoverable in the same manner as water rates.

Supply of water by hose pipe to stables &c.

4.—(1) The price to be charged for a supply of water by measure shall not exceed two shillings and six pence per one thousand gallons.

Price of supply by measure.

(2) Section 61 (Price of supply by measure) of the Act of 1910 is hereby repealed.

5. Subsection (1) of section 57 (Supply to houses partly used for trade &c.) of the Act of 1910 shall be read and have effect as though the following words had been inserted at the end of the subsection:—

Amendment of section 57 of Act of 1910.

“ or (b) any workhouse public institution hospital asylum (whether public or private) sanatorium club hotel public-house or inn or (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident therein or (d) any school not maintained by the local education authority.”

6.—(1) The minimum quarterly charge (exclusive of meter rent) for a supply of water by measure to any of the premises mentioned in section 57 of the Act of 1910 or in the preceding section of this Act shall be one-fourth of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same gross estimated rental.

Minimum charge for supplies by measure.

(2) The minimum quarterly charge (exclusive of meter rent) for a supply of water to any premises by measure for any other purposes shall be one pound.

A.D. 1926.

Discount
for prompt
payment
of water
rates.

7. The Board may if they think fit allow discounts or rebates to consumers of water in consideration of prompt payment of rates for the supply of water for domestic purposes not exceeding in any case five per centum. Provided that such discounts or rebates shall be at the same rate under like circumstances to all consumers. Provided also that if and so long as the Board allow such discounts or rebates notice of the effect of this enactment shall be endorsed on every demand note for water rates.

Dates for
payment
of water
rates.

8. Notwithstanding anything contained in section 70 (Rates to be paid quarterly in advance) of the Waterworks Clauses Act 1847 the Board may by resolution declare that their water rates and charges shall be payable at such date or dates as the Board may from time to time appoint:

Provided that no person shall be compellable to pay water rates or charges so demanded for any longer period in advance than three months.

Amend-
ment of
section 35
of Water-
works
Clauses
Act 1847.

9. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Board be read and construed as if the one-tenth part of the expenses of providing and laying down pipes mentioned in that section were one-seventh part of such expense and as if the period of three years mentioned in that section were four years.

Power to
person
liable to
maintain
pipes &c.
to open
ground
As to com-
munication
pipes.

10.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have a like power to open the ground to that conferred upon him by and be subject to the conditions of sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

(2) The Board may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply of the Board execute such works on behalf of such owner or occupier and any expenses incurred by the Board shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

11. If in the opinion of the Board any waste of water or injury or risk of injury to person or property is caused or likely to be caused by reason of any injury to or defect in any communication pipe which the Board are not under obligation to maintain it shall be lawful for the Board to execute such repairs to the communication pipe as they may think necessary or expedient in the circumstances of the case without being requested so to do and if any injury to or defect in the communication pipe shall have been found the expenses incurred by the Board for the purpose of ascertaining the injury or defect and executing the repairs (including the expense of breaking up filling in reinstating and making good any road pavement or soil for those purposes) shall be recoverable by the Board from the owner of the premises supplied or in cases where the communication pipe is repairable by the occupier of such premises from the occupier in like manner as the water rates in respect of the premises are recoverable. Provided that except in case of emergency the Board shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner and occupier of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

A.D. 1926

Power to Board to repair communication pipes.

12. Notwithstanding anything contained in any Act relating to the Board the Board shall have the exclusive right of executing any works on any of the water mains of the Board for connecting any communication or service pipe therewith and the Board shall on the request of the owner or occupier of any premises who is entitled to be supplied with water by the Board execute on any such main any work which shall be necessary to connect the communication or service pipe of such owner or occupier therewith but subject to any obligations of such owner or occupier in relation to the execution of such work and any expenses incurred by the Board in so doing shall be repaid by the owner or occupier so requesting and shall be recoverable summarily as a civil debt.

Board to connect communication pipes with mains.

13. If the owner of any house supplied with water by the Board when so required in pursuance of section 58 (Board not bound to supply several houses by one pipe) of the Act of 1910 fails within a period of one month

Separate communication pipes may be required.

A.D. 1926. after the receipt of such requirement to provide a separate pipe from the main pipe into such house the Board may themselves do the work necessary in that behalf and may recover from such owner the cost incurred by them in so doing summarily as a civil debt.

Entry of premises to remove fittings and meters.

14. The Board by their agents or workmen after forty-eight hours' notice in writing under the hand of the agent or other officer of the Board to the occupier or if there be no occupier then to the owner or lessee of any house building or land in which any water pipe meter or fitting belonging to the Board is laid or fixed and through or in which the supply of water is from any cause other than the default of the Board discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal.

Maintenance of common pipe.

15. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Board in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Board or other officer duly authorised in that behalf by the Board.

Register of meter to be prima facie evidence.

16.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be prima facie evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Board.

(2) Provided that if the Board and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and

the decision of such court shall be final and binding on all parties. A.D. 1926.

17. Every person who shall wilfully (without the consent of the Board) or negligently close or shut off any valve cock or other work or apparatus belonging to the Board whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Board) be liable on conviction to a penalty not exceeding five pounds and the Board may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. Penalty for closing valves and apparatus.

18. Any person being the owner or occupier of any house or building or part of a house or building or premises to or in respect of which he is not for the time being entitled to a supply or the continuance of the supply of water by the Board who shall without the authority of the Board turn on any valve cock or other work or apparatus attached to any service main or pipe connected with any main of the Board and provided or available for the purpose of affording such supply shall be deemed to commit an offence under section 60 (Penalty for destroying valves &c.) of the Waterworks Clauses Act 1847 and the said section shall extend and apply accordingly. Penalty for interfering with valves &c.

19. The period within which the Board shall pay off the sum of five hundred and twelve thousand five hundred and ninety-four pounds borrowed prior to the thirty-first day of March one thousand nine hundred and twenty-six and all money since borrowed or hereafter to be borrowed by them under section 87 (Power to borrow) of the Act of 1910 section 15 (Power to borrow) of the Act of 1914 and section 4 (Power to borrow) of the Act of 1920 for the construction of the Grwyne reservoir (Work No. 1) authorised by the Act of 1910 shall be seventy years instead of sixty years from the date or dates of borrowing the same and section 90 (Periods for repayment of moneys borrowed) of the Act of 1910 and section 16 (Periods for discharge of loans) of the Act of 1914 and section 4 (Power to borrow) of the Act of 1920 shall be read and construed as if a separate period of seventy years had been prescribed for the repayment of moneys borrowed for the construction of the said Grwyne reservoir. Extension of period for repayment of certain moneys borrowed under Acts of 1910 1914 and 1920.

A.D. 1926.

Power to
borrow.

20.—(1) The Board may from time to time independently of any other borrowing power borrow at interest for the purpose of paying the costs charges and expenses of this Act as hereinafter defined the sum required for the purpose and they shall repay all moneys so borrowed within the period of five years from the passing of this Act.

(2) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Board may mortgage or charge the revenue of their water undertaking and the moneys receivable by them from the constituent authorities defined by the Act of 1910 and all rates and moneys which they are authorised to levy and collect within the districts of the constituent authorities under the powers of that Act.

Incorporation of
financial
provisions
of Act of
1910.

21. The following sections of the Act of 1910 shall with the necessary modifications extend and apply to and with respect to moneys borrowed under this Act :—

Section 88 (Borrowing by means of mortgages);

Section 92 (Sinking fund) as amended by section 6 (Amendment of section 92 of Act of 1910) of the Act of 1920;

Section 94 (Protection of lender from inquiry);

Section 96 (Power to re-borrow);

Section 97 (Return to Local Government Board as to repayment of debt);

Section 98 (Application of money borrowed).

Costs of
Act.

22. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Board out of the revenue of their water undertaking or out of money to be borrowed under this Act for that purpose.

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